

SENATE No. 3135

Senate, June 18, 2026 - Text of the Senate amendment (Senator Comerford) to the House Bill establishing a charter for the town of Orange (House, No. 5053).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. The following shall be the charter for the town of Orange:-

2 PREAMBLE

3 We the people of the town of Orange, Massachusetts, in order to reaffirm the customary
4 and traditional liberties of the people with respect to the conduct of our local government and to
5 take the fullest advantages inherent in the home rule amendments to the constitution of the
6 commonwealth or the General Laws, do hereby adopt the following home rule charter for town.
7 It is the intention of this document that it reflects a gender nonspecific approach. Any references
8 to masculine gender are intended to reflect both masculine and feminine gender, and should not
9 be otherwise construed.

10 CHAPTER 1 – POWERS OF THE TOWN

11 Section 1: Incorporation

12 The town of Orange, Massachusetts, within its territorial limits as now or may hereafter
13 be established by law, is hereby reincorporated and continue to be a body politic and corporate,
14 known as the town of Orange.

Section 2: Short Title

This document shall be known and may be cited as the Town of Orange Charter. For purpose of this document, it is referred to as “the charter”.

Section 2A: Scope of Town Powers

The town shall possess, exercise, and enjoy all powers possible under the constitution and laws of the commonwealth as fully and completely as though each such power were specifically and individually enumerated herein.

Section 3: Form of Government

This charter provides for an open town meeting-select board-town manager form of government.

Section 4: Construction of Charter

The powers of the town under this charter shall be construed liberally in favor of the town and the specific mention of particular powers in the charter shall not be construed as limiting in any measure the general powers of the town as stated in this charter.

Section 5: Intergovernmental Relations

Consistent with any constitutional or statutory provisions, the town may exercise any of its powers or perform any of its functions, and may participate in the financing thereof, jointly or in cooperation, by contract or otherwise with any one or more municipalities, with any civil division, subdivision, or agency of the commonwealth, with any other state, or with the United States government.

35 CHAPTER 2 – TOWN MEETING

36 Section 1: Organization

37 2-1-1 The legislative powers of the town shall be exercised by town meeting, open to all
38 registered voters of the town.

39 2-1-2 The quorum for the conduct of business at town meeting shall be not less than 75
40 registered voters of the town.

41 2-1-3 Upon a successful challenge of the presence of a quorum, a smaller number of
42 registered voters than the established quorum shall vote to adjourn sine die any such meeting
43 forthwith or, at the discretion of the moderator, to a stated date, time, and place.

44 2-1-4 Town meeting shall be run in accordance with the latest edition of “Town Meeting
45 Time”, except as otherwise provided in the General Laws, by established practices, or in this
46 charter.

47 2-1-5 Rules of parliamentary procedure for town meeting shall be summarized in
48 simplified form in a document prepared by the moderator and the town clerk and shall be made
49 available for distribution to those requesting it, and also posted on the town website.

50 Section 2: Powers and Responsibilities

51 2-2-1 Town meeting may have the power to consider and act upon, with or without
52 amendments, all proposed operating and capital improvement budgets, bond issues, and other
53 financial proposals of the town.

2-2-2 Town meeting shall possess and exercise all powers generally conferred upon town meeting under general laws.

Section 3: Procedures

2-3-1 Annual town meeting shall be held according to town bylaw on the second Monday of May, to consider and adopt an annual operating and capital budget, and to act on financial and other matters. The meeting shall be continued on such additional days as may be necessary, until all articles in the warrant shall have been acted upon.

2-3-2 A special town meeting may be called by the select board. The select board shall call a special town meeting upon the written request of 200 registered voters or of 20 percent of the total number of registered voters of the town, whichever number is less. Any special town meeting so requested shall be held not later than 45 days after the receipt of such written request.

2-3-3 All proposed operating expenditures shall be included in a single, omnibus-type article in the town meeting warrant. In addition, all regular proposed capital improvement expenditures shall be included in an omnibus-type article.

2-3-4 The select board shall prepare the warrant for all town meetings. For the annual town meeting, the select board shall include in the warrant any article which has been requested in writing by not less than 10 registered voters of the town. For any special town meeting, the select board shall include in the warrant any article which has been requested in writing by 100 registered voters or by 10 percent of the total number of registered voters of the town, whichever number is less.

2-3-5 The warrant for the annual town meeting shall be closed 60 days prior to the date of the meeting and the date for the closing of the warrant for any other town meeting shall be at the discretion of the select board but not less than 21 days prior to posting. The warrant for every town meeting shall be posted on the town's official website and posted in at least 4 public places within the town not less than 14 days prior to the date of the town meeting.

2-3-6 Articles involving an expenditure of town funds shall not be voted on by town meeting unless the articles have been first provided to the finance committee for review. The chair of the finance committee, or their designated representative, shall be present at the town meeting to present the finance committee's recommendations.

2-3-7 Articles involving planning, zoning, subdivision control, land acquisition, conservation, extension of sewer lines, and all other matters within the jurisdiction of the board, committee or commission shall not be voted on by town meeting unless the appropriate board, committee or commission with jurisdiction over the matter has reviewed the article and followed all statutory procedures required for submittal to town meeting.

2-3-8 The order of consideration of articles as printed in the warrant may be changed by a majority vote or a 2/3rds vote at the discretion of the Moderator at town meeting or solely at the discretion of the moderator.

2-3-9 No proposed bylaw which has been unfavorably acted upon by town meeting shall be considered again within the 2 year period following the date of such unfavorable action unless the adoption of such proposed zoning bylaw was recommended in the final report of the planning board to town meeting or the adoption of such proposed general bylaw was favorably reported on at a previous town meeting by the select board.

2-3-10 At least 14 days prior to the date of any town meeting, a notice thereof shall be made available by the select board. Said notice shall include the date, time, and location of the town meeting and a description of ways to obtain copies of the warrant. A copy of the warrant shall be emailed or otherwise delivered by the select board to the moderator, department heads, town counsel, and to each member of the finance committee and the planning board. Any registered voter may file a written request with the town clerk to have a copy of the warrant mailed or delivered to their residence. Any such request must be renewed annually.

Section 4: Presiding Officer

2-4-1 A moderator shall be elected for a term of 3 years and shall preside at all sessions of town meeting. In the absence of the moderator and deputy moderator, town meeting shall, as its first act, elect an acting moderator to serve for a particular meeting. The town clerk shall preside at town meeting until such a vote has taken place, in accordance with section 14 of chapter 39 of the General Laws.

2-4-2 Within 30 days following the effective date of the moderator's election, or at the expiration date of the term of the deputy moderator, the moderator shall appoint a deputy moderator who shall serve for a term of one year and may preside at all or a portion of town Meeting and otherwise act in the stead of the moderator to regulate the proceedings of town Meeting.

2-4-3 The moderator shall have the power to declare a secret written ballot on any motion under any article when the moderator deems such action to be in the best interests of the town.

2-4-4 The moderator shall have the power to declare that a required two-thirds vote has been achieved by means of a voice vote.

2-4-5 The moderator shall make the following appointments: (a) 7 members of the finance committee; (b) a Deputy Moderator; (c) 3 members of the sewer and wastewater commission; (d) the designated number of the town of Orange members of the Franklin County technical school committee; and (e) any ad hoc committee created by town meeting, unless another appointing authority shall be specified in the article establishing such committee.

Section 5: Compulsory Attendance

2-5-1 The town moderator may require and schedule designated chairs of boards, commissions, committees and department heads to attend any specific or all sessions of annual town meeting or any special town meeting for the purpose of providing town meeting with information pertinent to warrant articles concerning their respective areas of responsibility. If any such chairs of boards, commissions, committees and department head is unable to attend because of illness or other reasonable cause, they shall designate a representative to attend in their place.

CHAPTER 3 – SELECT BOARD

Section 1: The Select Board

3-1-1 The select board shall consist of 5 members elected at large for 3 year overlapping terms. The general election for the office of select board shall be held in accordance with the General Laws and chapter 7 of this charter.

137 3-1-2 Any vacancy in the office of select board shall be filled by special elections in
138 accordance with the General Laws.

139 Section 2: General Powers

140 3-2-1 All executive powers of the town, except as otherwise provided in this charter,
141 shall be vested in the select board, who shall have all the powers given to select boards by the
142 General Laws. The select board shall exercise control over town affairs by recommending major
143 courses of action to town meeting. The select board shall present a report to town meeting on all
144 general bylaws proposed in the warrant for that town meeting.

145 3-2-2 The select board shall have the power to enact rules and regulations relating to the
146 conduct of town elections and for the establishment of town policies that are not otherwise
147 governed by General Laws or this charter, provided, however, that whenever an appropriation
148 shall be necessary to implement such action, the vote of the select board shall be effective only if
149 such appropriation is made by town meeting.

150 3-2-3 The select board shall establish written policies and procedures within their
151 jurisdiction to be adopted initially within 6 months of the appointment of a town manager. These
152 policies and procedures shall cover the functions and duties of the select board, the town
153 manager, and other officers, boards, and commissions appointed by the select board or the town
154 manager, or moderator within their jurisdiction not otherwise specified in the charter. In the
155 event of conflict between these policies and procedures and the charter, the charter shall govern.

156 3-2-4 The policies and procedures shall be reviewed and updated by the select board
157 within 90 days of each annual town election.

Section 3: Powers of Appointment

3-3-1 The select board shall have the power to appoint: (a) a town manager as provided in chapter 5 of this charter; (b) 3 members of the board of registrars of voters for 3 year overlapping terms; (c) 5 members of the zoning board of appeals for overlapping terms of 3 years and arranged so that the term of at least 1 member shall expire each year, and 3 associate members in a like manner; and (d) Election Officers the number as needed for a term of 1 year each as provided in section 12 of chapter 54 of the General Laws.

CHAPTER 4 – ELECTED OFFICERS AND TOWN BOARDS

Section 1: General Provisions

4-1-1 The officers and boards to be elected by vote of the town shall be: town clerk, moderator, board of library trustees, select board, board of health, water commission, cemetery commission, housing authority, elementary school committee,; the town of Orange members of the Mahar regional school committee, Soldiers' memorial trustees; and constables for three-year overlapping terms unless a different term is specified in this charter.

4-1-2 Boards and commissions established or continued under this chapter shall perform their functions and duties in accordance with the constitution and the General Laws of the commonwealth and this charter.

4-1-3 During the term for which a person is elected or appointed, and for the 1 year period following the expiration of their term, no officer or member of any board or commission of the town shall be eligible to accept any appointed, paid town position that is within the

178 jurisdiction of the respective board or commission for which such officer or member is serving
179 or served.

180 Section 2: Vacancies

181 4-2-1 Except as otherwise provided, vacancies in elected town boards established under
182 this chapter shall be filled by the select board, together with remaining members of the respective
183 Board, in accordance with section 11 of chapter 41 of the General Laws. Any person appointed
184 by the select board to fill a vacancy in an elected position shall serve in such position until the
185 next regular town election at which time the vacancy shall be filled by the registered voters and
186 the person chosen to fill the vacancy shall serve the remainder of the unexpired term.

187 Section 3: School Committees

188 4-3-1 Members of town of Orange to the Mahar regional school committee shall be
189 elected for 3 year overlapping terms, in accordance with the terms of the Mahar Regional School
190 District agreement.

191 4-3-2 Members of the Orange elementary school committee shall be elected for 3 year
192 overlapping terms.

193 4-3-3 The Mahar regional school committee and the town of Orange elementary school
194 committee are expected to submit to the town manager the budget as adopted by the respective
195 committees no later than February 1 of each year so that the town manager may consider the
196 effects of the requested assessments upon the total town budget.

197 Section 4: Library Trustees

4-4-1 The board of library trustees shall consist of 6 members elected for 3 year overlapping terms.

4-4-2 The board of library trustees shall be responsible for the administration and operation of the town library, which shall include supervision of all library employees, the acquisition of books, journals, periodicals, and other materials relating to the library function, and the promulgation of library rules and regulations.

Section 5: Housing Authority

4-5-1 The Housing Authority shall consist of 5 members, 1 of whom shall be appointed under authority of the commonwealth, 1 of whom shall be a tenant member appointed by the select board and 3 of whom shall be elected per section 5 of chapter 121B of the General Laws. All members shall serve 5 year overlapping terms. The Housing Authority shall have all of the powers and duties conferred upon it by this charter, town by-laws, a vote of town meeting and by the General Laws, including, but not limited to, chapter 121B of the General Laws.

Section 6: Town Clerk

4-6-1 The town clerk shall be elected for a 3 year term and shall carry out such duties as are, and may be, set forth in the General Laws, this charter or a vote of town meeting. In the event that town meeting votes to make the position of town clerk appointed, the town clerk shall be appointed by the town manager with approval of no less than three members of the select board.

CHAPTER 5 – THE TOWN MANAGER

Section 1: Appointment

219 5-1-1 The select board, by an affirmative vote of at least 4 members, shall appoint a
220 town manager.

221 Section 2: Qualifications

222 5-2-1 The position of town manager shall be filled based on educational, executive and
223 administrative qualifications and experience. The educational qualifications shall consist of
224 either, at a minimum, a bachelor's degree, preferably in public administration, granted by an
225 accredited degree granting college or university, or professional experience that shall include at
226 least 3 years of prior full-time, compensated executive service in public or business
227 administration.

228 5-2-2 In selecting a town manager, the select board shall conduct a search for candidates,
229 including an advertisement in a current publication serving the municipal management
230 profession. The town manager shall not have served in an elective office in the town of Orange
231 in the 2 year period immediately prior to appointment.

232 Section 3: Powers and Duties

233 5-3-1 The town manager shall be the chief administrative officer of the town and shall be
234 directly responsible to the select board for coordinating and administering all town affairs under
235 the jurisdiction of the select board. The select board shall be responsible for setting the salary of
236 the town manager, in accordance with the appropriation provided by town meeting.

237 5-3-2 The town manager shall devote their full working time to the duties of the position;
238 and shall not become a candidate for or hold any elective office during their term of
239 appointment.

240 5-3-3 The town manager shall attend all meetings of the select board, except when
241 excused, and shall advise and consult the select board on matters that come before the select
242 board.

243 5-3-4 The town manager will keep the select board fully informed regarding
244 departmental operations, general problems, administrative actions, and any other matters of
245 concern or importance and, to this end, shall make recommendations as appropriate and submit
246 written periodic reports to the select board as requested.

247 5-3-5 The town manager shall be responsible for negotiating contracts with employee
248 bargaining units, with final review and approval by the select board.

249 5-3-6 The town manager shall be responsible for the oversight of the divisions of (i)
250 finance and administration, (ii) public safety, (iii) public services, and (iv) the departments of
251 highway, parks and public spaces, cemetery, sanitation, tree warden, water, and sewer and
252 wastewater. At such time that the town of Orange takes action to create a division of public
253 works, the departments set forth in (iv) shall become part of the division of public works, the
254 oversight of which shall be on the town manager.

255 5-3-7 The town manager shall be the chief procurement officer and, in accordance with
256 section 19 of chapter 30B of the General Laws may designate such authority to procurement
257 officers.

258 5-3-8 The town manager may, subject to the approval of the select board, establish,
259 reorganize, consolidate, or abolish any department, board, commission, committee, or office, or
260 town agency under their direction and supervision, except as prohibited by general laws.

261 5-3-9 Except with respect to employees appointed or hired by the board of library
262 trustees, the water commission, the airport commission, the Orange elementary school
263 committee, the Orange Economic Development & Industrial Corp., the housing authority, or
264 those employees whose appointment is otherwise provided in this charter, the town manager
265 shall have the authority to hire, appoint, discipline, and terminate town employees, subject to any
266 collective bargaining that may be applicable. For the avoidance of doubt, the town manager may
267 enter into employment agreements not to exceed 3 years in length. The town manager shall also
268 have the authority to engage a town counsel with approval of not less than 3 members of the
269 select board.

270 5-3-10 The town manager shall have the authority to appoint, discipline, or remove non-
271 elected members of boards, commissions and committees except as otherwise provided for in
272 this charter.

273 5-3-11 The town manager shall perform such other duties as may be required by this
274 charter, town bylaws, town policies and procedures, vote of town meeting or vote of the select
275 board.

276 Section 4: Removal

277 5-4-1 During the first six months after the initial appointment, the select board may
278 remove or discipline the town manager by an affirmative vote of at least four members.
279 Thereafter, the select board may remove or discipline the town manager, provided, however, that
280 no such removal shall be adopted within 90 days following any town election that has resulted in
281 a change in the membership of the select board and provided further that such removal or
282 discipline shall be by an affirmative vote of at least four (4) members.

283 5-4-2 Any vote to remove the town manager pursuant to this chapter shall be done in
284 compliance with the Open Meeting Law and copies of all notices, requests, and motions adopted
285 by the select board, and a transcript of the public hearing, if one is held, shall be filed in the
286 office of the town clerk, and shall be a public record.

287 Section 5: Resignation

288 5-5-1 The town manager shall provide the select board with not less than 60 days written
289 notice of their intention to resign.

290 Section 6: Acting Town Manager

291 5-6-1 The select board shall appoint a qualified person to serve as acting town manager
292 to exercise the powers and perform the duties of the town manager during any vacancy caused by
293 the town manager's absence, suspension, removal, or resignation. The appointment shall be for a
294 period not to exceed 90 days, and it may be renewed for additional periods not to exceed 90
295 days. Members of the select board and members of their families, including the spouse and
296 children of a select board member and a parent, brother, sister, nephew or niece of a select board
297 member and their spouse, shall be ineligible to serve in this capacity.

298 CHAPTER 6 – TOWN ADMINISTRATIVE ORGANIZATION

299 Section 1: General

300 6-1-1 The administrative functions of town government shall be performed within the
301 organizational framework of 3 divisions: (i) a division of finance and administration, (ii) a
302 division of public safety, (iii) a division of public services, and (iv) the departments of highway,
303 parks and public spaces, cemetery, tree warden, sanitation, water, and sewer and wastewater. At

such time that the town of Orange takes action to create a division of public works, the departments set forth in section 6-1-1(iv) shall fall within the division of public works.

6-1-2 Responsibility and oversight for the divisions and departments set forth in section 6-1-1 shall be vested with the town manager, except as provided in section 3-2-1.

6-1-3 The town manager shall designate those divisions to be supervised by a director and those, if any, to be supervised by a manager. If a manager is designated to act as director of one or more division, the town manager shall serve in such dual capacity without additional compensation. A division director, other than the manager, may be designated as head of 1 or more departments within the respective divisions, should any such departments be established under section 5-3-6 of this charter.

Section 2: Division of Finance and Administration

6-2-1 The administrative functions of assessment, tax collections, receipts, disbursements, and other functions of a fiscal nature, as well as permits, licensing and elections, shall be carried out within the division of finance and administration.

Section 3: Division of Public Safety

6-3-1 The administrative functions of emergency management, fire, police, public health, public safety, inspection services, and such other public safety services as may be assigned by this charter or by town bylaws shall be carried out within the division of public safety.

Section 4: Division of Public Services

6-4-1 The administrative functions of general town services, recreation, the town library, veterans' services, and such other public services as may be assigned by this charter or by town bylaws shall be carried out within a division of public service.

Section 5: Division of Public Works

6-5-1 At such time that the town of Orange takes action to create a division of public works, the administrative functions of the departments of highway, parks and public spaces, cemetery, sanitation, tree warden, water, and sewer and wastewater and such other public work functions as may be assigned by this charter or by town bylaws shall be carried out within the division of public works.

6-5-2 The moderator shall appoint 3 members to the sewer and wastewater commission for staggered 3 year terms. One member to be appointed for an initial term for 1 year, 1 member to be appointed for an initial term for 2 years, and 1 member to be appointed for an initial term for 3 years, thereafter the appointed terms shall be for 3 years. Each member appointed to the commission shall be a resident of the town, and shall include 1 member with extensive experience in the field of public works or engineering, 1 member with extensive experience in the field of finance or accounting, and 1 member at large. The commission shall prepare an annual report to be delivered to the town manager.

Section 6: Personnel Administration

6-6-1 All hires, appointments and promotions of town officers and employees shall be made based on merit and fitness for the duties of the position.

6-6-2 Except as otherwise provided by general laws or with respect to employees covered by a collective bargaining agreement where said agreement would conflict with the personnel policies, the town manager shall manage and be responsible for creating and maintaining personnel policies subject to the approval of the select board. Upon vote of the select board, the policies shall become immediately effective. A copy of such policies shall be filed for public record purposes with the town clerk and shall be made available to all employees. Said policies may, from time to time, be amended or revised following the same procedure used in the initial adoption of such policies.

CHAPTER 7 – ELECTIONS

Section 1: Town Election

7-1-1 The general election for all town offices shall be held on the first Monday of March.

Section 2: Elections to be Nonpartisan

7-2-1 All elections of town officers shall be nonpartisan, and election ballots for town offices shall be printed without any party mark, emblem, or designation whatsoever.

Section 3: Eligibility of Town Voters

7-3-1 Any registered voter of the town shall be eligible for election to any elective office or board of the town.

Section 4: Time of Taking Office.

7-4-1 Any person duly elected to any office or board shall take up the duties of their respective office or board after they have been sworn to the faithful performance of their duties by the town clerk.

Section 5: Recall of Elected Offices

7-5-1 Any holder of an elective office in the town may be recalled by the registered voters of said town as herein provided.

7-5-2 Not less than 150 registered voters of the town may initiate a recall petition by filing an affidavit with the town clerk containing the name of the official sought to be recalled and a statement of the grounds upon which the petition for recall is based. The town clerk shall deliver to said voters petition blanks demanding said recall, printed forms of which the town clerk shall keep available. Such blanks shall be issued by the town clerk, with the town clerk's signature and official seal attached thereto. Such petition blanks shall be: (i) dated; (ii) addressed to the select board; (iii) contain the names of persons who filed the affidavit, the name of the official whose recall is sought, and the grounds for such recall as stated in the affidavit; and (iv) demand the election of a successor to the office. A copy of such petition shall be entered in a record book to be kept in the office of the town clerk. The recall petition shall be returned and filed with the town clerk within 30 days after the petition blanks are issued, signed by not less than 10 percent of the number of the registered voters who shall add their signatures and the street number of their residences.

The town clerk shall, within 3 business days of receipt of the recall petition, submit said petitions to the registrars of voters, who shall, within 5 business days, certify thereon the number of signatures which are names of registered voters of the town.

385 7-5-3 If the recall petition is certified by the town clerk, the town clerk shall submit the
386 same with the town clerk's certificate to the select board within 5 business days and the select
387 board shall, within 5 business days, give written notice of the receipt of the certificate to the
388 official whose recall is sought. If said official does not resign within 7 days following delivery of
389 said notice, the select board shall order an election to be held on a date fixed by them not less
390 than 64 days and not more than 120 days after the date the select board calls for said election;
391 provided, however, that if any other town election is to occur within 60 to 90 days thereafter, the
392 select board shall postpone the recall election to the date of such other election.

393 7-5-4 An official sought to be recalled may be a candidate to succeed themselves and,
394 unless they request otherwise in writing, the town clerk shall place their name on a ballot without
395 nomination.

396 The nomination of other candidates, the publication of the warrant for the removal
397 election, and the conduct of the same shall be in accordance with the provisions of law relating to
398 elections, unless otherwise provided in this charter.

399 7-5-5 The officer whose recall is sought shall continue to perform the duties of the office
400 until the recall election. If the officer is not recalled in the election, then such officer shall
401 continue in office for the remainder of the unexpired term subject to recall as before, except as
402 provided herein. If officer is recalled in the election, then said officer shall be deemed removed
403 upon the qualification of the successor who shall hold the office for the remainder of the
404 unexpired term. If the successor fails to qualify within 5 days after receiving notification of their
405 election, the officer recalled shall thereupon be deemed removed and the office vacant.

7-5-6 Ballots used in a recall election shall submit the following propositions in the order indicated: For the recall of (name of official), Against the recall of (name of official).

Immediately at the right of each proposition there shall be an oval in which the voters, by filling in the oval, may vote for either of the said propositions. Under the propositions shall appear the word "Candidates," the directions to the voters required by section 42 of chapter 54 of the General Laws, and, beneath this, the names of candidates nominated in accordance with provisions of law relating to elections.

If a majority of the votes cast upon the question of recall is in the affirmative, the candidate receiving the highest number of votes shall be declared elected. If a majority of the votes on the question are in the negative, the ballots for candidates need not be counted.

7-5-7 No officer shall be subject to recall if their term of office expires within 6 months of the filing of the certificate. If a vacancy occurs in said office after a recall election has been ordered, the election shall proceed as provided hereunder.

No recall petition shall be filed against an official within 90 days after such official takes office nor, in the case of an official subject to recall election and not recalled thereby, until at least 90 days after the election at which the recall was submitted to the voters.

Section 6: Apportionment

7-6-1 The select board, in consultation with the town clerk, shall divide the town into voting precincts, which shall be convenient, compact, contiguous, and substantially equal in population.

CHAPTER 8 – FINANCIAL PROVISIONS AND PROCEDURES

427 Section 1: Applicability of State Law

428 8-1-1 In all matters concerning finances and financial procedures of the town, the
429 provisions of the General Laws shall apply, together with such other requirements as are
430 provided for in this charter.

431 Section 2: Fiscal Year

432 8-2-1 The fiscal year of the town shall be as prescribed by the General Laws.

433 8-2-2 All town department budgets for the new fiscal year shall be submitted to the town
434 accountant as prescribed by the General Laws, who shall transmit such information to the town
435 manager in accordance with town policies and procedures.

436 Section 3: Submission of Budget and Budget Message

437 8-3-1 At least 60 days prior to the start of annual town meeting, the town manager shall
438 submit at a joint meeting of the select board and the finance committee a proposed budget for the
439 ensuing fiscal year and an accompanying message, unless otherwise required by the General
440 Laws.

441 8-3-2 The town manager's messages on the budget shall include, but not be limited to:
442 (i) an outline of the proposed financial policies of the town for the ensuing fiscal year; (ii) a
443 description of the important features of the budget; (iii) indication of any major changes from the
444 current fiscal year in financial policies, expenditures, and revenues, together with the reasons for
445 such changes; (iv) a summary of the town's debt position; and (v) such other information as the
446 town manager deems appropriate.

8-3-3 The budget shall provide a complete financial plan for all town funds and activities and shall be in such form as the finance committee may require and shall include proposed expenditures for both current operations and capital projects during the ensuing fiscal year, detailed by divisions, departments, offices, boards, commissions, committees, and the purposes of such expenditures.

Section 4: Action on Proposed Budget

8-4-1 The finance committee shall conduct 1 or more public meetings on the proposed budget and shall issue its recommendations in writing and make the documents containing the recommendations available to voters at least 14 days prior to annual town meeting. In preparing its recommendations, the finance committee may require any town division, department, office, board, commission or committee to furnish it with financial reports and budgetary information.

8-4-2 The town manager shall be responsible for presenting the budget to town meeting.

Section 5: Budget Adoption

8-5-1 Town meeting shall adopt a budget, with or without amendments, at annual town meeting.

Section 6: Capital Improvement Program

8-6-1 The capital program committee shall be comprised of 5 members, 2 members from the finance committee and 3 members appointed by the town manager. Committee members shall serve a 3 year term. No town employee or elected town official may be appointed. The town accountant and town manager shall be ex-officio members of the committee without the

right to vote. Any vacancy shall be filled for the unexpired term in the manner of the original appointment.

8-6-2 The capital program committee shall study proposed capital outlays involving the acquisition of land or an expenditure of not less than \$25,000 having a useful life of not less than 3 years. All offices, boards and committees, including the select board and the Orange Elementary School Committee, shall not later than December 1 of each year give to the capital program committee, on forms prepared by it, information concerning all projects anticipated by them as needing town meeting approval during the ensuing 5 year period. The capital program committee shall study the need, timing and cost projection of these projects and the effect each will have on the financial position of the town.

8-6-3 The capital program committee shall prepare an annual report containing a budget for such outlays for presentation to the finance committee and to the select board at a joint budget meeting and such report shall be submitted not later than the second Monday in February. The capital program committee shall submit a report to town meeting. The capital program committee may make investigations and hold hearings to carry out its responsibilities.

Section 7: Notice of Public Hearing on Capital Program

8-7-1 The capital program committee shall post on the town website a notice and summary of the capital program setting forth: (i) the times and places where copies of the capital improvements program are available for inspection; and (ii) the date, time, and place when the committee shall conduct a public hearing on said program, which shall be not less than 7 days following the notice and summary publication required in section 8-7-1(i).

8-7-2 The select board shall present the capital improvements program to annual town meeting for its adoption, with or without amendments.

Section 8: Public Records

8-8-1 The budget and capital improvements program shall be public records and copies shall be kept and be available for inspection at the office of the town clerk and at the town library.

Section 9: Collection and Disbursements

8-9-1 Except as otherwise provided by the General Laws, all monies and fees received by the town or by any division, department or office thereof, shall upon their receipt by such division, department or office, be paid forthwith into the town treasury.

8-9-2 Warrants for the payment of town funds prepared and signed by the town accountant in accordance with the General Laws shall be submitted to the town manager to be analyzed and forwarded to the select board for their approval and signature.

Section 10: Lapse of Appropriations

8-10-1 Every appropriation, except an appropriation for a capital expenditure, shall lapse at the close of the fiscal year to the extent that it has not been expended or encumbered. An appropriation for capital expenditure shall continue in force until the purpose for which it was made has been accomplished or abandoned; provided, however, the purpose of any such appropriation shall be deemed abandoned if 5 years pass from the date of appropriation without any disbursement from or encumbrance of the appropriation.

8-10-2 In the final month of any fiscal year, no division, department, commission, office, or town agency may expend, except for amounts previously encumbered, more than 1/12 of its annual appropriation, absent an emergency declaration by the town manager.

Section 11: Finance Committee

8-11-1 A finance committee consisting of 7 members shall be appointed for 3 year overlapping terms. The moderator shall have the authority to appoint, discipline and remove members on the finance committee. Any new appointments shall be made by the moderator within 10 days after the adjournment of annual town meeting.

CHAPTER 9 – PLANNING AND THE ENVIRONMENT

Section 1: Powers and Duties of the Office of Planning

9-1-1 The planning board consisting of 5 members shall be appointed by the town manager for 3 year overlapping terms, so arranged so that the term of at least 1 member will expire each year. The town manager may appoint associate members as provided for under section 9 of chapter 40A of the General Laws.

9-1-2 At least 90 days prior to an annual town meeting, the planning board shall meet with the town manager and select board and make recommendations on all matters concerning the physical, economic, and environmental development of the town, which are proposed on the warrant.

Section 2: Long-Range Comprehensive Plan

9-2-1 The planning board shall be responsible for the development and periodic updating of a master or comprehensive plan, which shall be used as the basis for review and evaluation of all major developments in the town.

Section 3: Planning Staff

9-3-1 The town manager may appoint a planning director and support staff provided that such funds have been appropriated for that purpose.

9-3-2 Any director so appointed shall be professionally qualified for the duties of their office by virtue of education, training, and experience.

9-3-3 The planning director shall be supervised by the town manager and shall receive general policy guidance from the planning board and the office of community development.

Section 4: Conservation Commission

9-4-1 A conservation commission consisting of 3 members shall be appointed by the Town Manager for 3 year overlapping terms.

9-4-2 The conservation commission shall exercise such powers and duties as prescribed by general laws and this charter.

Section 5: Zoning Board of Appeals

9-5-1 A zoning board of appeals, as provided in chapter 3, shall exercise such powers and duties as prescribed by the General Laws, town bylaws and this charter.

Section 6: Coordination of Activities

9-6-1 Except with respect to the zoning board of appeals, it shall be the general responsibility of the town manager to coordinate the activities of the planning board, the conservation commission, and other boards, commissions and committees concerned with the physical, economic and environmental development of the town. All boards and committees shall make annual reports to the town manager and the select board.

CHAPTER 10 – GENERAL PROVISIONS

Section 1: Definitions

10-1-1 Unless another meaning is clearly apparent from the manner in which the word is used, the following words as used in the Charter shall have the following meanings:

(i) Charter - The word “charter” shall mean this charter;

(ii) Days - in computing any period of time prescribed or allowed by these rules, by order of court, or by any applicable statute or rule, the day of the act, event, or default after which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is a Saturday, a Sunday, or a legal holiday, in which event the period runs until the end of the next day which is not a Saturday, a Sunday, or a legal holiday. When the period of time prescribed or allowed is less than 7 days, computation shall be based solely on business days.

(iii) Emergency - The word “emergency” shall mean a sudden, unexpected, unforeseen happening, occurrence or condition which necessitates immediate action;

(iv) General Laws - The words “General Laws” (used with initial capital letters) shall refer to the General Laws of the Commonwealth;

567 (v) general laws - The words “general laws” (all lower case letters) shall mean laws
568 which apply alike to all cities and towns, or to all towns, or to a class of municipalities of which
569 Orange is a member;

570 (vi) Local Newspaper - The words “local newspaper” shall mean a newspaper of general
571 circulation in the town of Orange;

572 (vii) Majority Vote - The words “majority vote” shall mean a majority of those present
573 and voting, provided a quorum is present when the vote is taken, unless a higher number is
574 required by law;

575 (viii) Multiple Member Body - The words “Multiple Member Body” shall mean any town
576 body consisting of at least 2 persons, whether elected, appointed, or otherwise constituted, but
577 not including town meeting:

578 (ix) Town - The word “Town” shall mean Orange;

579 (x) Town Agency - The words “Town Agency” shall mean any Board, Commission,
580 Committee or other multiple member body, division, department or office of the town of Orange;

581 (xi) Town Bulletin Board - The words “Town Bulletin Board” shall mean the bulletin
582 board in the town hall on which official notices are posted, and those at such other locations
583 within the town which may, from time to time, be established by the select board;

584 (xii) Town Officer - The words “town officer,” when used without further qualification or
585 description, shall mean a person having charge of an office or department of the town who in the
586 exercise of powers or duties exercises some portion of the sovereign power of the town;

(xiii) Voters - The word “voters” shall mean persons who are registered to vote in the town of Orange.

Section 2: Amendment

10-2-1 This charter may be replaced, revised, or amended in accordance with the provisions of the constitution and General Laws.

Section 3: Specific Provisions to Prevail

10-3-1 To the extent that any specific provisions of this charter shall conflict with any provisions expressed in general terms, the specific provision shall prevail.

Section 4: Severability

10-4-1 If any provision of this charter is found to be invalid, the remaining provisions shall not be affected thereby. If the application of the charter or any of its provisions to any person or circumstance is found to be invalid, the application of this charter and its provisions to other persons and circumstances shall not be affected thereby.

Section 5: Town Boards, Commissions, and Committees

10-5-1 All boards, commissions and committees of the town shall: (i) organize annually and elect a chair and other necessary officers; (ii) adopt rules of procedure and voting; (iii) maintain minutes, copies of which shall be a public record filed regularly with the town clerk; and (iv) give reports at any session of any town meeting upon the request of the select board or the town manager.

10-5-2 The votes of each town board, commission and committee shall be recorded and made a part of its official proceedings.

Section 6: Rescinding Power

10-6-1 Any appointive authority under this charter shall have the power to rescind any appointment made thereby, provided, however, that the appointee shall first have been served with a written notice specifying the appointive authority's intention to rescind the appointment.

Section 7: Vacancies in Appointed Boards

10-7-1 Vacancies arising in appointed boards, commissions and committees shall be filled by the respective appointive authority for the unexpired portion of the term.

10-7-2 Whenever a vacancy shall occur in the membership of an appointed multiple-member body, the remaining members shall forthwith give written notice of such vacancy to the appointing authority. If, at the expiration of 30 days following delivery of such written notice to the appointing authority, said appointing authority has not appointed a person to fill the vacancy, the remaining members of the multiple-member body may recommend a replacement to fill such vacancy to the appointing authority for the remainder of the unexpired term.

10-7-3 If any person appointed to serve as a member of a multiple-member body shall fail to attend 4 consecutive meetings, or more than 1/4 of all meetings held during 1 calendar year, the appointing authority may declare the office of such person vacant; provided however, that prior to the vote on such question written notice of an intention to do so shall be given by the appointing authority to the affected member in hand, or mailed to the last known address of such person by regular first class mail and by certified mail.

627 Section 8: Investigations

628 10-8-1 The power to conduct investigations shall be vested in the select board; provided,
629 however, the select board may delegate this power to the town manager at their discretion. The
630 select board may also initiate investigations and may empower the town manager to act on its
631 behalf.

632 10-8-2 The investigating authority may investigate the conduct of any division,
633 department, board, commission, committee, Individual office or any of its members or
634 employees, including any claims against the town. For this purpose, the investigating authority
635 may subpoena witnesses, administer oaths, take testimony, and require the production of
636 evidence.

637 Section 9: Filing of Notice

638 10-9-1 All appointing authorities of the town shall file with the town clerk a copy of
639 each notice of appointment to a town office, or any rescission of appointment thereto, and the
640 same shall be a public record.

641 CHAPTER 11 – TRANSITIONAL PROVISIONS

642 Section 1: Effective Date

643 11-1-1 Upon adoption by the registered voters at town meeting, passage by the
644 Legislature and signature by the Governor, if required, this charter shall become effective on the
645 July 1 following its adoption and enactment.

646 Section 2: Continuation of Government

11-2-1 Appointed or elected town officials holding office on the effective date of this charter shall continue to serve until reelected, reappointed, their successors have been qualified, or their duties have been transferred or abolished. No regular full-time or part-time employee of the town shall forfeit his pay grade or longevity as a result of the adoption of this charter.

11-2-2 No officer holding, on the effective date of this charter, tenure of office by act of the legislature, or vote of the town meeting, or both, shall have the same set aside as the result of the adoption of this charter

Section 3: Continuation of Bylaws

11-3-1 Except for any provisions inconsistent with this charter, all special acts, bylaws, resolutions, rules, regulations, and votes of town meeting in force on the effective date of this charter shall continue in effective until amended or repealed.

11-3-2 The town's acceptances of section 97A of chapter 41 and section 42 of chapter 48 of the General Laws are retained to the extent said provisions are not in conflict with the provisions of this charter or subsequent amendments thereto.

11-3-3 Within 30 days of the adoption of this charter, the select board shall appoint a bylaw revision committee to consist of 5 members to revise, codify and submit an updated set of bylaws. Such bylaws shall be voted on at the next town meeting held after the adoption of this charter, unless an extension is requested by the bylaw revision committee.

11-3-4 Beginning the year following the adoption of this charter, it shall be the responsibility of the town clerk to ensure that the bylaws of the town shall be revised, codified,

and republished at the discretion of the town clerk and that copies of such updated bylaws shall be made available to all registered voters making such a requesting in writing.

Section 4: Transfer of Records and Property

11-4-1 All records, property, and equipment whatsoever of any office, department, or town agency or part thereof, the powers and duties of which are assigned in whole or in part to another office or town agency, shall be transferred forthwith to the office, department, or town agency to which such power and duties are assigned.

Section 5: Continuance of Contracts and Other Obligations

11-5-1 All leases, contracts, franchises, and obligations entered into by the town or for its benefit prior to the effective date of this charter shall continue in full force and effect.

Section 6: Pending Actions and Proceedings

11-6-1 No action or proceedings, civil or criminal, in law or in equity, pending at the time this charter takes effect, brought by or against the town or any office, department, or other town agency thereof, shall be affected or abated by the adoption of this charter.

Section 4: Continuation of Elective Offices

11-7-1 Beginning upon the adoption of this charter, those elective offices which continue in accordance with this charter, the terms of which would expire in March, shall continue to serve until the next election, or until their successors have been qualified.

SECTION 2. This Act shall take effect upon passage.